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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:21-cv-01408-DDD-SBP

Lawson v. Safeco Insurance Company of America
Assigned to: Chief Judge Daniel D. Domenico
Referred to: Magistrate Judge Susan Prose
Case in other court: Park County District Court, 21cv30017
Cause: 12:635(i)(3) Breach of Insurance Contract

Date Filed: 05/24/2021
Date Terminated: 09/30/2024
Jury Demand: Both
Nature of Suit: 110 Insurance
Jurisdiction: Diversity

Plaintiff**Shellee Lawson**

represented by **Anne Kathryn McMichael**
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V.

Defendant

Safeco Insurance Company of America
a New Hampshire Stock Insurance
Company

represented by **Holly E. Cheong**
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TERMINATED: 08/26/2024

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Date Filed	#	Docket Text
05/24/2021	<u>1</u>	NOTICE OF REMOVAL by SAFECO Insurance Company of America from Park County District Court, Case Number 21cv30017. (Filing fee \$ 402, Receipt Number 1082-7883268), filed by SAFECO Insurance Company of America. (Attachments: # <u>1</u> Exhibit A - Complaint and Jury Demand, # <u>2</u> Exhibit B - Return of Service, # <u>3</u> Exhibit C - Summons, # <u>4</u> Exhibit D - Notice to Counsel of Filing, # <u>5</u> Exhibit E - State Civil Case Cover Sheet, # <u>6</u> Civil Cover Sheet)(Spano, Brian) (Entered: 05/24/2021)
05/24/2021	<u>2</u>	NOTICE OF FILING OF STATE COURT RECORDS by Defendant SAFECO Insurance Company of America (Attachments: # <u>1</u> Docket Sheet, # <u>2</u> Complaint and Jury Demand, # <u>3</u> Summons, # <u>4</u> Civil Case Cover Sheet, # <u>5</u> Affidavit of Service on Safeco, # <u>6</u> Affidavit of Service on Deep Water)(Spano, Brian) (Entered: 05/24/2021)
05/24/2021	3	FIRST AND FINAL NOTICE TO ALL ATTORNEY(S) AND UNREPRESENTED PARTIES IN REMOVED, TRANSFERRED, OR OTHER CASES. To receive any further notice in a case removed or transferred to this court, or special matters including discovery disputes, bankruptcy appeals, or withdrawals of reference, Multi-district litigation (MDL), etc., all attorneys and unrepresented parties must enter an appearance under D.C.COLO.LAttyR 5(a). An attorney must be an active member of this court's bar and be in good standing in accordance with D.C.COLO.LAttyR 3. A waiver of the fee for bar admission may apply in limited situations. (Text Only Entry) (cpomm,) (Entered: 05/25/2021)
05/24/2021	4	Case assigned to Magistrate Judge S. Kato Crews. Text Only Entry (cpomm,) (Entered: 05/25/2021)
05/24/2021	<u>5</u>	COMPLAINT and Jury Demand against Safeco Insurance Company of America, filed by Shellee Lawson.(cpomm,) (Entered: 05/25/2021)

05/24/2021	6	AFFIDAVIT of Service of Summons, Complaint upon Safeco Insurance Company of America on 05/10/2021 (cpomm,) (Entered: 05/25/2021)
05/24/2021	7	Magistrate Judge consent form issued pursuant to D.C.COLO.LCivR 40.1, direct assignment of civil actions to full time magistrate judges. (cpomm,) (Entered: 05/25/2021)
05/26/2021	8	<i>Defendant's</i> ANSWER to 5 Complaint by Safeco Insurance Company of America.(Spano, Brian) (Entered: 05/26/2021)
05/28/2021	9	MINUTE ORDER <i>Setting Rule 16(b) Scheduling Conference</i> . Telephone Scheduling Conference set for 7/14/2021 10:30 AM in Courtroom C201 before Magistrate Judge S. Kato Crews. The parties shall file their proposed scheduling order, and email a copy in Word format to Crews_Chambers@cod.uscourts.gov, on or before 7/7/2021. IT IS FURTHER ORDERED that The Magistrate Judge Consent Form (ECF. # 7) is due on or before 7/7/2021. At the scheduled time, counsel shall call the Court provided conference line at (888) 251-2909 Access Code: 5662814#. SO ORDERED by Magistrate Judge S. Kato Crews on 5/28/2021. Text Only Entry (amont,) (Entered: 05/28/2021)
05/28/2021	10	NOTICE of Entry of Appearance by Holly C. White on behalf of Safeco Insurance Company of AmericaAttorney Holly C. White added to party Safeco Insurance Company of America(pty:dft) (White, Holly) (Entered: 05/28/2021)
07/01/2021	11	NOTICE of Entry of Appearance by Nathan Brown Thoreson on behalf of Safeco Insurance Company of AmericaAttorney Nathan Brown Thoreson added to party Safeco Insurance Company of America(pty:dft) (Thoreson, Nathan) (Entered: 07/01/2021)
07/06/2021	12	CONSENT to Jurisdiction of Magistrate Judge by Defendant Safeco Insurance Company of America All parties do not consent.. (Thoreson, Nathan) (Entered: 07/06/2021)
07/06/2021	13	CASE REASSIGNED pursuant to 12 Consent/Non-Consent to Jurisdiction of Magistrate Judge. All parties do not consent. This case is randomly reassigned to Judge Daniel D. Domenico. All future pleadings should be designated as 21-cv-01408-DDD. (Text Only Entry) (jgonz,) (Entered: 07/06/2021)
07/07/2021	14	Proposed Scheduling Order by Defendant Safeco Insurance Company of America. (Thoreson, Nathan) (Entered: 07/07/2021)
07/13/2021	15	ORDER REFERRING CASE to Magistrate Judge S. Kato Crews. Pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this case is referred to the assigned United States Magistrate Judge to (1) convene a scheduling conference under Fed. R. Civ. P. 16(b) and enter a scheduling order meeting the requirements of Local Civ. R. 16.2, (2) conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the scheduling order upon a showing of good cause, (3) hear and determine pretrial matters, including discovery and other non-dispositive motions, (4) conduct hearings, including evidentiary hearings, and submit proposed findings of fact and recommendations for rulings on dispositive motions, and (5) pursuant to Local Civ. R. 16.6 and at the discretion of the Magistrate Judge, convene such early neutral evaluation and/or settlement conferences and direct related procedures as may facilitate resolution of this case without the necessity of a motion or prior authorization of the undersigned. SO ORDERED by Judge Daniel D. Domenico on 7/13/2021. Text Only Entry (dddlc3,) (Entered: 07/13/2021)
07/14/2021	16	NOTICE of Entry of Appearance <i>Notice of Entry of Appearance</i> by Gregory Scott Rich on behalf of Shellee LawsonAttorney Gregory Scott Rich added to party Shellee Lawson(pty:pla) (Rich, Gregory) (Entered: 07/14/2021)

07/14/2021	17	COURTROOM MINUTES for proceedings held before Magistrate Judge S. Kato Crews: Scheduling Conference held on 7/14/2021. Discovery due by 1/7/2022. Dispositive Motions due by 2/7/2022. Joint Status Report due by 10/8/2021. FTR: Courtroom C-201. (amont,) (Entered: 07/14/2021)
07/14/2021	18	SCHEDULING ORDER: by Magistrate Judge S. Kato Crews on 7/14/2021. (amont,) (Entered: 07/14/2021)
07/28/2021	19	Stipulated MOTION for Protective Order by Defendant Safeco Insurance Company of America. (Attachments: # 1 Exhibit A)(Thoreson, Nathan) (Entered: 07/28/2021)
07/28/2021	20	ORDER REFERRING MOTION: 19 Stipulated MOTION for Protective Order filed by Safeco Insurance Company of America. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 7/28/2021. Text Only Entry (dddlc3,) (Entered: 07/28/2021)
08/30/2021	21	ORDER granting 19 Stipulated Motion for Entry of a Protective Order by Magistrate Judge S. Kato Crews on 8/30/2021. Text Only Entry.(trvo,) (Entered: 08/30/2021)
08/30/2021	22	STIPULATED PROTECTIVE ORDER by Magistrate Judge S. Kato Crews on 8/30/2021. (trvo,) (Entered: 08/30/2021)
09/07/2021	23	NOTICE of Change of Address/Contact Information by Nathan Brown Thoreson (Thoreson, Nathan) (Entered: 09/07/2021)
10/08/2021	24	Joint MOTION for Extension of Time to <i>File Case Deadlines</i> by Defendant Safeco Insurance Company of America. (Thoreson, Nathan) (Entered: 10/08/2021)
10/08/2021	25	Joint STATUS REPORT by Defendant Safeco Insurance Company of America. (Thoreson, Nathan) (Entered: 10/08/2021)
10/08/2021	26	ORDER REFERRING MOTION: 24 Joint MOTION for Extension of Time to File Case Deadlines filed by Safeco Insurance Company of America. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 10/8/2021. Text Only Entry (dddlc4) (Entered: 10/08/2021)
10/12/2021	27	ORDER granting 24 Motion for Extension of Time to File re 24 Joint MOTION for Extension of Time to <i>File Case Deadlines</i> . For good cause, and to accommodate the parties' efforts toward informal resolution, the deadlines are amended as follow: Discovery is due by 3/8/2022 and Dispositive Motions are due by 4/8/2022. SO ORDERED by Magistrate Judge S. Kato Crews on 10/12/2021. Text Only Entry (skclc1) (Entered: 10/12/2021)
03/04/2022	28	Joint MOTION for Extension of Time to <i>of Case Deadlines</i> by Defendant Safeco Insurance Company of America. (Thoreson, Nathan) (Entered: 03/04/2022)
03/04/2022	29	ORDER REFERRING MOTION: 28 Joint MOTION for Extension of Time to <i>of Case Deadlines</i> filed by Safeco Insurance Company of America. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 3/4/2022. Text Only Entry (dddlc4) (Entered: 03/04/2022)
03/11/2022	30	ORDER granting 28 Motion for Extension of Time to File re 28 Joint MOTION for Extension of Time to <i>of Case Deadlines</i> . The deadlines are extended as follows: Discovery closes on 5/9/2022 and Dispositive Motions are due by 6/9/2022. By Magistrate Judge S. Kato Crews on 3/11/2022. Text Only Entry (skclc1) (Entered: 03/11/2022)

05/09/2022	31	Unopposed MOTION for Extension of Time to <i>/of Case Deadlines</i> by Defendant Safeco Insurance Company of America. (Thoreson, Nathan) (Entered: 05/09/2022)
05/09/2022	32	ORDER REFERRING MOTION: 31 Unopposed MOTION for Extension of Time to <i>/of Case Deadlines</i> filed by Safeco Insurance Company of America. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 5/9/2022. Text Only Entry (dddlc4) (Entered: 05/09/2022)
05/10/2022	33	ORDER granting 31 Motion for Extension of Time to File re 31 Unopposed MOTION for Extension of Time to <i>/of Case Deadlines</i> . For good cause, the deadline for Discovery is extended to 7/8/2022, and the deadline for Dispositive Motions is extended to 8/8/2022. By Magistrate Judge S. Kato Crews on 5/10/2022. Text Only Entry (skclcl1) (Entered: 05/10/2022)
07/27/2022	34	Joint MOTION for Extension of Time to <i>File Dispositive Motions</i> by Defendant Safeco Insurance Company of America. (Thoreson, Nathan) (Entered: 07/27/2022)
07/27/2022	35	ORDER REFERRING MOTION: 34 Joint MOTION for Extension of Time to <i>File Dispositive Motions</i> filed by Safeco Insurance Company of America. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 7/27/2022. Text Only Entry (dddlc4) (Entered: 07/27/2022)
08/14/2022	36	ORDER granting 34 Motion for Extension of Time to File re 34 Joint MOTION for Extension of Time to <i>File Dispositive Motions</i> . For good cause, Dispositive Motions are now due by 8/22/2022. By Magistrate Judge S. Kato Crews on 8/14/2022. Text Only Entry (skclcl1) (Entered: 08/14/2022)
08/22/2022	37	MOTION for Summary Judgment by Defendant Safeco Insurance Company of America. (Attachments: # 1 Exhibit A - Policy, # 2 Exhibit B - Electronic Notes, # 3 Exhibit C - Claim File Excerpts, # 4 Exhibit D - Lawson Depo Excerpts, # 5 Exhibit E - Pltf Dpo Ex. 10, # 6 Exhibit F - Pltf Dpo Ex. 5, # 7 Exhibit G - Pltf Dpo Ex. 9, # 8 Exhibit H - BigCat Estimate, # 9 Exhibit I - Graham Dpo Ex. 21, # 10 Exhibit J - Pltf Dpo Ex. 7, # 11 Exhibit K - Graham Depo Excerpts, # 12 Exhibit L - Pltf Dpo Ex. 2, # 13 Exhibit M - Graham Dpo Ex. 20, # 14 Exhibit N - Complaint against Deep Water, # 15 Exhibit O - Pltf Resp to Discovery)(Thoreson, Nathan) (Entered: 08/22/2022)
08/29/2022	38	Unopposed MOTION for Extension of Time to File Response/Reply as to 37 MOTION for Summary Judgment by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 08/29/2022)
08/29/2022	39	ORDER REFERRING MOTION: 38 Unopposed Motion for Extension of Time to File Response/Reply as to 37 Motion for Summary Judgment filed by Shellee Lawson. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 08/29/2022. Text Only Entry (dddlc5,) (Entered: 08/29/2022)
08/29/2022	40	ORDER granting 38 Motion for Extension of Time to File Response. Plaintiff may have up to and including September 26, 2022, to file her Response to Defendants Motion for Summary Judgment. By Magistrate Judge S. Kato Crews on 8/29/2022. Text Only Entry (skclcl1) (Entered: 08/29/2022)
09/22/2022	41	Second MOTION for Extension of Time to File Response/Reply as to 37 MOTION for Summary Judgment <i>Filed as Unopposed</i> by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 09/22/2022)
09/22/2022	42	ORDER REFERRING MOTION: 41 Second MOTION for Extension of Time to File Response/Reply as to 37 MOTION for Summary Judgment <i>Filed as Unopposed</i> filed by Shellee Lawson. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 09/22/2022. Text Only Entry (dddlc5,) (Entered: 09/22/2022)

09/23/2022	43	ORDER granting 41 Motion for Extension of Time to File Response/Reply re 41 Second MOTION for Extension of Time to File Response/Reply as to 37 MOTION for Summary Judgment <i>Filed as Unopposed</i> . Plaintiff may have to and including October 10, 2022, to file her Response. By Magistrate Judge S. Kato Crews on 9/23/2022. Text Only Entry (skclcl1) (Entered: 09/23/2022)
10/05/2022	44	Unopposed MOTION for Leave to File Excess Pages <i>for Response to Defendant's Motion for Summary Judgment</i> by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 10/05/2022)
10/05/2022	45	ORDER granting 44 Motion for Leave to File Excess Pages. Plaintiff's Response to Defendant's Motion for Summary Judgment may not exceed 7,000 words. by Judge Daniel D. Domenico on 10/05/2022. Text Only Entry(dddcl5,) (Entered: 10/05/2022)
10/10/2022	46	RESPONSE to 37 MOTION for Summary Judgment filed by Plaintiff Shellee Lawson. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8, # 9 Exhibit 9, # 10 Exhibit 10, # 11 Exhibit 11, # 12 Exhibit 12, # 13 Exhibit 13, # 14 Exhibit 14, # 15 Exhibit 15, # 16 Exhibit 16, # 17 Exhibit 17, # 18 Exhibit 18, # 19 Exhibit 19)(Rich, Gregory) (Entered: 10/10/2022)
10/24/2022	47	REPLY to Response to 37 MOTION for Summary Judgment filed by Defendant Safeco Insurance Company of America. (Attachments: # 1 Exhibit C (Revised) - Claim File Excerpts)(Thoreson, Nathan) (Entered: 10/24/2022)
03/07/2023	48	NOTICE of Entry of Appearance by Holly E. Cheong on behalf of Safeco Insurance Company of AmericaAttorney Holly E. Cheong added to party Safeco Insurance Company of America(pty:dft) (Cheong, Holly) (Entered: 03/07/2023)
05/02/2023	49	REASSIGNING MAGISTRATE JUDGE. This action is reassigned to Magistrate Judge Susan Prose upon her appointment. All future pleadings should reference Magistrate Judge Prose at the end of the civil action number (such as 21-cv-01408-DDD-SP). Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained and will now be handled by Magistrate Judge Prose in Courtroom C-205. Her chambers are located in Room C-254 of the Byron G. Rogers Courthouse. Her telephone number is 303-335-2722. (Text only entry) (alave,) (Entered: 05/02/2023)
12/08/2023	50	ORDER ON MOTION FOR SUMMARY JUDGMENT by Judge Daniel D. Domenico on 8 December 2023. Safeco's Motion for Summary Judgment, Doc. 37 , is GRANTED IN PART as to Plaintiff's bad faith claim (Claim Three), which is DISMISSED. Safeco's motion is DENIED IN PART with respect to Plaintiff's breach of contract claim (Claim Two), which may proceed.(cmadr,) (Entered: 12/08/2023)
12/12/2023	51	MINUTE ORDER. The dispositive motions deadline has passed, and there are no pending motions. To facilitate the Court's just, speedy, and inexpensive determination of this action, on or before 12/27/2023 the parties must file a Joint Status Report not to exceed 1,400 words, identifying the following: (1) the prospects for settlement; (2) three mutually agreeable alternative dates for trial to commence in September or October 2024, and the anticipated length of trial; and (4) any other issues the parties wish to bring to the Court's attention. SO ORDERED by Judge Daniel D. Domenico on 12/12/2023. Text Only Entry (dddcl1,) (Entered: 12/12/2023)
12/27/2023	52	Joint STATUS REPORT by Defendant Safeco Insurance Company of America. (Cheong, Holly) (Entered: 12/27/2023)
12/28/2023	53	TRIAL PREPARATION ORDER by Judge Daniel D. Domenico on 28 December 2023. A four-day jury trial is SET to commence at 9:00 a.m. on September 23, 2024 in Courtroom A 1002 of the Alfred A. Arraj United States Courthouse, 901 19th Street, Denver, CO 80294; A Final Pretrial Conference is SET for 1:30 p.m. on August 28, 2024

		in Courtroom A 1002; and A Trial Preparation Conference is SET for 10:30 a.m. on September 19, 2024 in Courtroom A 1002. (cmadr,) (Entered: 12/28/2023)
02/22/2024	54	Joint STATUS REPORT by Defendant Safeco Insurance Company of America. (Cheong, Holly) (Entered: 02/22/2024)
07/09/2024	55	ORDER RESETTING PRETRIAL CONFERENCES due to conflicts on the Court's calendar. The Final Pretrial Conference set for 8/28/2024 is VACATED and RESET for 9/4/2024 at 09:30 AM in Courtroom A1002 before Judge Daniel D. Domenico. The Trial Preparation Conference set for 9/19/2024 is VACATED and RESET for 9/20/2024 at 10:30 AM in Courtroom A1002 before Judge Daniel D. Domenico. <u>The pretrial deadlines tied to the date of the Final Pretrial Conference, see Doc. 53 at 2-9, are now tied to the new Final Pretrial Conference date.</u> SO ORDERED by Judge Daniel D. Domenico on 7/9/2024. Text Only Entry (dddlc1,) (Entered: 07/09/2024)
07/31/2024	56	Unopposed MOTION for Hearing/Conference re 55 Order,, <i>to Reschedule September 4, 2024 Final Pre Trial Conference</i> by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 07/31/2024)
07/31/2024	57	ORDER GRANTING 56 Unopposed Motion to Reschedule Final Pretrial Conference. The Final Pretrial Conference set for 9/4/2024 is VACATED and RESET for 8/29/2024 at 10:30 AM in Courtroom A1002 before Judge Daniel D. Domenico. The parties' pretrial deadlines are modified as follows: 7/31/2024 - Defendant's Side Disclose Deposition Designations, Fed. R. Civ. P. 26(a)(3)(A)(ii); 8/5/2024 - Plaintiff's Side Disclose Rebuttal Designations, Fed. R. Civ. P. 26(a)(3)(A)(ii); 8/5/2024 - Disclose Exhibit Lists, Fed. R. Civ. P. 26(a)(3)(A)(iii); 8/9/2024 - Exchange Objections to Deposition Designations, Fed. R. Civ. P. 26(a)(3)(B); 8/9/2024 - Exchange Objections to Exhibits, Fed. R. Civ. P. 26(a)(3)(B); and 8/9/2024 - File Proposed Jury Instructions. <u>All other pretrial deadlines remain as stated in the Trial Preparation Order, Doc. 53, and the deadlines tied to the date of the Final Pretrial Conference are now tied to the new Final Pretrial Conference date.</u> SO ORDERED by Judge Daniel D. Domenico on 7/31/2024. Text Only Entry (dddlc1,) (Entered: 07/31/2024)
08/09/2024	58	Proposed Jury Instructions <i>Joint</i> by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 08/09/2024)
08/09/2024	59	Proposed Verdict Form <i>for Plaintiff Shellee Lawson and Safeco Insurance Company of America</i> by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 08/09/2024)
08/09/2024	60	Proposed Verdict Form <i>of Plaintiff Shellee Lawson and Safeco Insurance Company of America - Corrected Document</i> by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 08/09/2024)

08/15/2024	61	MOTION in Limine to <i>Exclude Evidence of Claims Handling and Extraneous Policy Details</i> by Defendant Safeco Insurance Company of America. (White, Holly) (Entered: 08/15/2024)
08/16/2024	62	STRICKEN NOTICE of <i>Withdrawal of Attorney</i> by Defendant Safeco Insurance Company of America (Cheong, Holly) Modified pursuant to ECF 63 on 8/23/2024 (cmadr,). (Entered: 08/16/2024)
08/22/2024	63	MINUTE ORDER STRIKING 62 Notice of <i>Withdrawal of Counsel</i> filed by Defendant Safeco Insurance Company of America. Withdrawal of appearance may only be effected by a court order entered after service of a motion to withdraw showing good cause. Mrs. Cheong may file a motion to withdraw that complies with Local Atty. R. 5(b). SO ORDERED by Judge Daniel D. Domenico on 8/22/2024. Text Only Entry (dddlc9,) (Entered: 08/22/2024)
08/22/2024	64	RESPONSE to 61 MOTION in Limine to <i>Exclude Evidence of Claims Handling and Extraneous Policy Details</i> filed by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 08/22/2024)
08/22/2024	65	Proposed Pretrial Order by Plaintiff Shellee Lawson. (Attachments: # 1 Exhibit Exhibit A Joint List of Exhibits)(Rich, Gregory) (Entered: 08/22/2024)
08/23/2024	66	TRIAL BRIEF by Defendant Safeco Insurance Company of America. (White, Holly) (Entered: 08/23/2024)
08/23/2024	67	DESIGNATION OF DEPOSITION TESTIMONY by Defendant Safeco Insurance Company of America. (White, Holly) (Entered: 08/23/2024)
08/23/2024	68	Proposed Voir Dire by Defendant Safeco Insurance Company of America. (White, Holly) (Entered: 08/23/2024)
08/23/2024	69	OBJECTIONS to <i>Plaintiff's Trial Exhibits</i> by Defendant Safeco Insurance Company of America. (White, Holly) (Entered: 08/23/2024)
08/23/2024	70	Amended MOTION to Withdraw as Attorney by Defendant Safeco Insurance Company of America. (Cheong, Holly) (Entered: 08/23/2024)
08/23/2024	71	Witness List <i>Amended Joint Witness List</i> by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 08/23/2024)
08/26/2024	72	ORDER GRANTING 70 Motion to Withdraw as Attorney. The Clerk of Court is instructed to terminate attorney Holly E. Cheong as counsel of record, and to remove this name from the electronic certificate of mailing. Defendant Safeco Insurance Company will continue to be represented by attorneys Brian J. Spano and Holly C. White. SO ORDERED by Judge Daniel D. Domenico on 8/26/2024. Text Only Entry(dddlc9,) (Entered: 08/26/2024)
08/29/2024	73	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Final Pretrial Conference held on 8/29/2024. Taking under advisement 61 Motion in Limine. Court Reporter: Kevin Carlin. (rkeec) (Entered: 08/29/2024)
09/16/2024	74	ORDER RESETTING HEARING. Due to a conflict on the Court's calendar, the Trial Preparation Conference set for 9/20/2024 at 10:30 am is VACATED and RESET IN TIME ONLY for 9/20/2024 at 02:30 PM in Courtroom A1002 before Judge Daniel D. Domenico. Plaintiff Shellee Lawson and the corporate representative for Defendant Safeco Insurance Company of America must attend the conference in person.

		SO ORDERED by Judge Daniel D. Domenico on 9/16/2024. Text Only Entry (dddlc1,) (Entered: 09/16/2024)
09/20/2024	75	NOTICE of Entry of Appearance by Anne Kathryn McMichael on behalf of Shellee LawsonAttorney Anne Kathryn McMichael added to party Shellee Lawson(pty:pla) (McMichael, Anne) (Entered: 09/20/2024)
09/20/2024	76	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Trial Preparation Conference held on 9/20/2024. Court Reporter: Tammy Hoffschildt. (rkeec) (Entered: 09/20/2024)
09/20/2024	77	FINAL PRETRIAL ORDER. By Judge Daniel D. Domenico on 9/20/2024. (dddlc1,) (Entered: 09/20/2024)
09/21/2024	78	Exhibit List by Defendant Safeco Insurance Company of America. (White, Holly) (Entered: 09/21/2024)
09/23/2024	79	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Jury Trial (Day 1) held on 9/23/2024. Court Reporter: Tammy Hoffschildt. (rkeec) (Entered: 09/24/2024)
09/23/2024	80	Jury Strike Sheet - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 09/24/2024)
09/23/2024	81	Jury Strike Sheet with juror names redacted. (rkeec) (Entered: 09/24/2024)
09/23/2024	82	Jury Random List (Usage Sheet) - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 09/24/2024)
09/24/2024	83	ORDER by Judge Daniel D. Domenico on 9/24/2024. (rkeec) (Main Document 83 replaced on 9/30/2024) (rkeec,). (Entered: 09/24/2024)
09/24/2024	84	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Jury Trial (Day 2) held on 9/24/2024. Court Reporter: Tammy Hoffschildt. (rkeec) (Entered: 09/25/2024)
09/25/2024	85	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Jury Trial (Day 3) completed on 9/25/2024. JURY VERDICT. Court Reporter: Tammy Hoffschildt. (rkeec) (Entered: 09/26/2024)
09/25/2024	86	Final Jury Instructions read by the Court on 9/25/2024. (rkeec) (Entered: 09/26/2024)
09/25/2024	87	Jury Note 1 (Question) - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 09/26/2024)
09/25/2024	88	Jury Note 1 (Question) with juror name redacted. (rkeec) (Entered: 09/26/2024)
09/25/2024	89	Court response to Jury Note 1 (Question). (rkeec) (Entered: 09/26/2024)
09/25/2024	90	Jury Note 2 (Verdict) - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 09/26/2024)
09/25/2024	91	Jury Note 2 (Verdict) with juror name redacted. (rkeec) (Entered: 09/26/2024)
09/25/2024	92	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 09/26/2024)
09/25/2024	93	JURY VERDICT with juror name redacted. (rkeec) (Entered: 09/26/2024)

09/25/2024	94	Joint Witness List with Clerk's notation of dates and times testified. (rkeec) (Entered: 09/26/2024)
09/25/2024	95	Joint Exhibit List with Clerk's notation of exhibits admitted. (rkeec) (Entered: 09/26/2024)
09/26/2024	96	ORDER finding as moot 61 Motion in Limine. Defendant Safeco's 61 Motion in Limine is moot and therefore requires no ruling. SO ORDERED by Judge Daniel D. Domenico on 9/26/2024. Text Only Entry(ddd1c9,) (Entered: 09/26/2024)
09/30/2024	97	FINAL JUDGMENT by Clerk in favor of Shellee Lawson against Safeco Insurance Company of America and approved as to form by Judge Daniel D. Domenico on 9/30/2024. (rkeec) (Entered: 09/30/2024)
10/14/2024	98	MOTION for Extension of Time to <i>File Bill of Costs</i> by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 10/14/2024)
10/15/2024	99	ORDER granting 98 Motion for Extension of Time. Plaintiff may file a bill of costs on or before October 17, 2024. SO ORDERED by Judge Daniel D. Domenico on 10/15/2024. Text Only Entry(ddd1c9,) (Entered: 10/15/2024)
10/17/2024	100	NON-STIPULATED Proposed Bill of Costs by Plaintiff Shellee Lawson. Parties conferred on 10/14/2024. The following category or categories remain under dispute: Fees of the Clerk. Fees for service of summons and complaint. Fees of the court reporter for all or any part of the transcript necessarily obtained for use in the case. Fees and disbursements for printing. Fees for witnesses. Fees for exemplification and copies of papers necessarily obtained for use in the case. Docket fees under 28 U.S.C. Section 1923. Costs incident to taking of depositions. Costs as reflected on mandate of Court of Appeals. Other costs. Per court procedure, any objection to the Proposed Bill of Costs is due within 14 days (Attachments: # 1 Exhibit A - Filing Fees, # 2 Exhibit B - Service Fees, # 3 Exhibit C - Court Reporter Fees, # 4 Exhibit D - Deposition Fees)(Rich, Gregory) (Entered: 10/17/2024)
10/28/2024	101	MOTION to Alter Judgment by Plaintiff Shellee Lawson. (Rich, Gregory) (Entered: 10/28/2024)
10/31/2024	102	NOTICE re 100 Proposed Bill of Costs,,, <i>NOTICE RE CONFERRAL ON BILL OF COSTS</i> by Plaintiff Shellee Lawson (Rich, Gregory) (Entered: 10/31/2024)
11/09/2024	103	VOIR DIRE TRANSCRIPT of proceedings held on September 23, 2024 before Judge Domenico. Pages: 1-61. (thoff,) (Entered: 11/09/2024)
11/09/2024	104	TRANSCRIPT of Jury Trial held on September 23, 2024 before Judge Domenico. Pages: 1-129. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff,) (Entered: 11/09/2024)

11/09/2024	105	TRANSCRIPT of Jury Trial held on September 24, 2024 before Judge Domenico. Pages: 130-343. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff,) (Entered: 11/09/2024)
11/09/2024	106	TRANSCRIPT of Jury Trial held on September 25, 2024 before Judge Domenico. Pages: 344-399. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff,) (Entered: 11/09/2024)
11/18/2024	107	RESPONSE to 101 MOTION to Alter Judgment filed by Defendant Safeco Insurance Company of America. (Attachments: # 1 Exhibit A)(White, Holly) (Entered: 11/18/2024)
12/02/2024	108	REPLY to Response to 101 MOTION to Alter Judgment <i>Reply in Support of Motion to Alter Judgment</i> filed by Plaintiff Shellee Lawson. (Attachments: # 1 Exhibit Ex A - Depo Transcript Damon Baker, # 2 Exhibit Ex B - Trial Transcript Sept 25, 2024)(Rich, Gregory) (Entered: 12/02/2024)
12/16/2024	109	ORDER denying 101 Motion to Alter Judgment. Summary judgment motions are decided based on the evidence available to the Court at that stage of litigation; evidence presented at trial does not resurrect claims that failed at summary judgment. <i>See</i> Fed. R. Civ. P. 56(a), (c), (e). Plaintiff has not offered any precedent, and the Court is not aware of any, that supports reinstating and reconsidering a claim dismissed at summary judgment based on evidence adduced at trial, and even if it were proper to do so, it would seem to require a new trial, not simply amending the judgment. The 101 Motion to Alter is therefore denied. SO ORDERED by Judge Daniel D. Domenico on 12/16/2024. Text Only Entry(dddle9,) (Entered: 12/16/2024)
12/24/2024	110	Costs taxed by Clerk in the amount of \$3,401.50 against Defendant Safeco Insurance Co. and in favor of Plaintiff Shellee Lawson. Costs awarded pursuant to parties NOTICE of stipulation at Docket No. 102 . (nmilt) (Entered: 12/24/2024)

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